

NATIONAL AGENCY FOR EXAMINATIONS (NAE) NATIONAL EXIT EXAMINATION FOR
STUDENTS OF ETHIOPIAN LAW SCHOOLS 2010/2011 (2003) ACADEMIC YEAR

PART I: -PRIVATE LAWS (**property law**)

1. Which one of the following statements is not true about joint ownership?

- A. It represents a right of ownership held by two or more persons in relation to an undivided thing.
- B. Each joint owner has a right to dispose of his/her share of the object.
- C. It may be acquired through derivative or original mode of acquisition.
- D.** Not all cases of joint ownership may be terminated by the application of a joint owner for division or sale of the thing.
- E. B and D
- F. B and C

2. Under Ethiopian law, the right of usufruct;

- A. Is a limited real right exercised in relation to a thing owned by another person?
- B. May be transferred by the right holder for consideration or gratuitously.
- C. May arise from the provisions of the law.
- D. Represents a dismemberment of the elements of the right of ownership.

E. All

3. The right of preemption;

- A. Is a real right that enables the right holder to purchase an immovable or a chattel in priority to other persons where the owner decides to sell it?
- B. Is a restriction on the right of the owner to use and enjoy his/her property.
- C. May not be created for more than ten years, since such agreement affects the public interest for the free transfer of goods.
- D. Shall not be valid unless registered in the register of immovable properties.
- E. The right holder may recover the thing from the purchaser in auction after it has been sold in auction.

F. All

4. According to the modern view of patrimony, every person has patrimony and a person can have only one patrimony. **True/false**

5. Things that constitute intrinsic elements of immovable things shall be treated as from the date of the contract for their separation until their actual separation.

4. French law recognizes possession exercised in relation to incorporeal things /rights/. Such possession is called _____
5. Discuss the requirements for the acquisition of ownership through possession in good faith and the rationale behind the rules governing it (10%).

LLB Exit Exam Part I, NEAEA 2012 (2004 E.C.)

1. What is the appropriate legal term used to represent a mode of **acquisition of ownership** in the case where an individual cuts **unprotected** wild tree and claims ownership right over the object?
 - A. Grabbing
 - B. Transfer.
 - C. Possession in good faith.
 - D. Possession free of defect
 - E. Occupation.**
2. Which of the following is the basis for the protection of property right in the Ethiopian context?
 - A. The acknowledgement of natural rights.
 - B. The Universal Declaration of Human Rights.
 - C. The adoption of relevant Ethiopian laws by the competent government organ.**
 - D. International resolutions.
 - E. The interest of the public.
3. The Ethiopian civil code has provided that ownership right may not be divided except in accordance with the law. In which of the following cases can ownership be divided as an exception to the rule of indivisibility?
 - A. In the sale of the object subject to ownership.
 - B. In the abandonment of ownership right.
 - C. When the object owned is physically divided between two persons as new owners.**
 - D. When the object owned is broken in to pieces.
 - E. In the creation of the right of use and collection of fruits by the owner to the benefit of a third party while maintaining the naked ownership.

4. In considering whether to expropriate private property attached to an immovable object, what is the main factor the competent authority should take into account?

- A. The value of the property subject to expropriation.
- B. The location of the property subject to expropriation.
- C. The amount of financial benefit the government can get if the expropriation is effected.
- D. The consent of the owner of the property subject to expropriation.
- E.** The weight of the interest of the public and the interest of the owner of the Property to be expropriated.

5. Demonstrate the difference between possessory action and petitory Action. (5%)

LL.B Exit Exam Part I, NEAEA 2013 (2005 E.C.)

1. One of the following is different from others.

- A. A property acquired by the spouse through succession.
- B. A property acquired by the spouse through donation.
- C. A property the spouse own before the conclusion of the marriage.
- D. A sum of money a spouse acquired by alienating a personal property. -
- E.** An income originated from personal property.

LL.B Exit Exam Part I, NEAEA 2014 (2006 E.C.)

1. Identify the correct statement (s) regarding ordinary and special movable things under Ethiopian Law.

- A. Both movable and special movable goods are subject to same legal rule's governing acquisition and extinction of ownership.
- B. Title to both ordinary and special movable things is in principle transferred upon transfer of possession.
- C.** A movable thing is special movable if its transfer is regulated by special Laws otherwise than as provided under Article 1186 (1) of the Civil Code.
- D. Laptops are special movable things.
- E.** C&D.

2. Which one of the following is ground for defective possession under the Ethiopian property law?
- A. Violence.
 - B. Secrecy.
 - C. Discontinuity.
 - D. All.**
 - E. B&C.
3. What do you think is the distinction between property categorized as public domain and private domain?
- A. Public domain refers to property owned by the state while private domain refers to Property owned privately.
 - B. Private Domain is governed by rules regulating privately owned property.
 - C. The state cannot impose any charge with respect to exploitation of public domain
 - D. Public domain is not subject to acquisition by possession in good faith.
 - E. All.**

LL.B Exit Exam Part one NEAEA 2015 (2007 E.C.)

1. Which the following subject to rules governing transaction involving corporeal chattel
- A. Immovable by destination
 - B. Immovable
 - C. Accessories of immovable**
 - D. Intrinsic element of immovable
2. An owner does not lose ownership of a property under the Ethiopian property law on the following ground:
- A. Acquisitive prescription
 - B. Usucaption
 - C. Transfer
 - D. Loss of physical control**
 - E. mortgage
3. Under the Ethiopian law, the finder of corporeal chattel has:
- A. no obligation to preserve the thing s/he found
 - B. the right to transfer valid title to third parties
 - C. the obligation to take measure of publicity with a view to informing the owner of the fact that he found the chattel**

- D. the right to personal use of the thing s/he found
 - E. No right to claim compensation for expense s/he incurred in the Couse of administration of the thing
4. What are vices of possession under Ethiopia law? Indicate the provisions that incorporate the vices?
5. What are the distinctions between original and derivative means of acquiring ownership?

LL.B Exit Exam Part one NEAEA 2016 (2008 E.C.)

1. Which one the following is not a mechanism of acquiring original title to things under Ethiopian Laws?
- A. Occupations
 - B. Usucaption
 - C. Accessions
 - D. All
2. Which of the following laws is least relevant from the perspective of governing property Relationship in the Ethiopian legal system?
- A. The FDRE Constitution.
 - B. The Commercial Code.
 - C. The FDRE Criminal Code.
 - D. The FDRE Revised Family Code.
 - E. The Federal Civil Servants Proclamation.**
3. Which of the following is not affected by classification of goods in Ethiopia in to movables and immovable?
- A. Transfer/acquisition of ownership.
 - B. Establishment of real security/collateral.
 - C. Loss of ownership.
 - D. Power of liquidator in succession.**
 - E. Prove of the existence of property rights in relation to things.
4. Explain the adage demo dat quod non habet in contradistinction with rules of acquisition of Title through possession in good faith

LL.B Exit Exam Part one NEAEA 2016/2017 (2009 E.C.)

1. Which of the following is correct about rights *in rem* enshrined in the Ethiopian Civil Code?
 - A. The notion of rights *in rem* is coextensive with the notion of patrimony.
 - B. Right *in rem* refers to any right invoked against anyone in the world.
 - C. Rights *in rem* are always acquired from predecessors in title.
 - D. Rights *in rem* are regarded in the Code as extra *commercium*.
 - E.** Rights *in rem* refer to any right invoked on a thing acquired unilaterally/independently or derived from predecessors in title.

2. How are special movable things distinguished from ordinary movables?
 - A. Title to ordinary movables is transferred up on conclusion of written contracts and transfer of possession.
 - B.** Transfer of title to special movable things is regulated otherwise than as provided under Art. 1186 (1).
 - C. While movable things are definitely identifiable, one cannot tell in certainty what types of things constitute special movables.
 - D. Special movables are immovable by their nature but subject to contracts that anticipates their removal from immovable property.
 - E. The classification of things in to ordinary and special movables has no legal significance except it simplifies our understanding of the notion of property.

3. Which of the following is **incorrect** about intrinsic elements under the Ethiopian law?
 - A. A thing will be regarded as intrinsic element of another only if the two things are inseparably materially united.
 - B. A thing ceases to have its independent existence in the eyes of the law if it becomes intrinsic element of another.
 - C. The rights of third parties on intrinsic elements will automatically extinguish if they become intrinsic element of a thing belonging to another.
 - D. A person whose property has become intrinsic element of another will have claim for damages against the later.
 - E.** Any transaction affecting the principal things will be presumed to have an effect on its accessories.

4 Which one of the following **is not** the economic rationale for recognizing the institution of property?

- A. Attaining efficient use of scarce resources
- B. Prevention of overexploitation of things
- C. Prevention of market dysfunction**
- D. Prevention of under-maintenance
- E. Protection of the rights a person who invested his/her labor

LL.B Exit Exam Part one NEAEA 2017/2018 (2010E.C.)

1. Which one of the following may **not** be considered as the subject matter of property?

- A. The atmospheric air in its entirety
- B. An invention
- C. An original expression of idea which is fixated
- D. A sign which distinguishes a person's goods from that of another
- E. A utility model

2. The law of possession in good faith as embodied in the civil code applies generality to _____

- A. A special movable
- B. An immovable
- C. A stolen thing
- D. Any ordinary movable sold by a person other than an owner**
- E. Currency and securities to bearer

3. _____ is a thing that is materially integrated with another thing and **cannot be detached** therefrom without destroying such thing

- A. An accessory
- B. An intrinsic element**
- C. A principal
- D. A temporary accessory
- E. A customary link

LL.B Exit Exam Part one NEAEA 2018/2019 (2011E.C.)

1. Pursuant to article 1160 and the subsequent Articles (Article 1160 ff) of the Civil Code of Ethiopia, under certain conditions a person acquires ownership of a movable through good faith. What is the relevant time good faith must exist?
A. At the time of entry into possession of the movable thing.
B. At the time of conclusion of a contract of sale regarding the movable thing
C. At the time of signing of the contract of sale by witnesses
D. After entry into possession of the movable thing

LL.B Exit Exam Part one NEAEA 2019/2020 (2012E.C.)

1. The principle that states an owner of an immovable thing **may not cause nuisance or damage to his/her neighbor related to** _____
A. Sustainability of ownership
B. Abuse of ownerships
C. Transferability of ownership
D. Dynamism of ownership
2. Single out a type of property right which may be subject to attachment by creditor under the civil code of Ethiopia:
A. Promise of sale
B. Right of recovery
C. Usufruct
D. Right of preemption
E. Right of occupation of premises
3. A land holder may, under Ethiopia law, claim:
A. The airspace directly above his/her plot indefinitely
B. The subsurface directly below his/her plot indefinitely
C. The airspace directly blow his/her plot to the extent necessary for the use of the land
D. The minerals which exist directly beneath his/her plot
E. The materials placed on the surface of his/her plot
4. Which one is the following requires **longer duration**?
A. Period of limitation for filing possessory action
B. Prescription with regard to movable property

- C. Period of limitation with regard to recovery of lost and found things by an original owner
 - D.** Period of time which is required to invoke usucaption
 - E. Period of limitation concerning recovery of stolen things from a person in good faith
- 5 A person is assumed to be an owner of an ordinary movable things under the law of Ethiopia when he/she:
- A. Enters into possession of such movable
 - B.** Enters into possession of such movable with intent to be an owner thereof
 - C. Develop an intent to be an owner of such movable
 - D. Concludes a contract followed by delivery of such movable
 - E. Conclude a contract followed by delivery and registration of such movable
- 6 Which of the following concept fully captures land right given to the rural masses in the present-day Ethiopia?
- A. Land lease
 - B. Usufruct
 - C. Ownership
 - D.** Use right
 - E. Fruits
- 7 Which of the following may not be considered a formal source of property law in Ethiopia?
- A. The federal constitution
 - B. International human rights instruments ratified by Ethiopian
 - C. Binding interpretation of the cassation bench of the federal Supreme court
 - D. Customary law which does not contravene the federal constitution
 - E.** Writing of leading scholars

LL.B Exit Exam Part one NEAEA 2020/2021 (2013E.C.)

1. The law of possession in good faith as embodied in the civil code of Ethiopia applies generally to_____
- A. A special movable
 - B. An immovable
 - C. A stolen thing
 - D.** Any ordinary movable
 - E. Currency and securities to bearer

LL.B Exit Exam Part one NEAEA 2021/2022 (2014E.C.)

1. Which one of the following alternatives is among the characteristic of ownership ?
 - A. It is narrow right
 - B. It is a specific right
 - C. It is a bundle of rights**
 - D. It is not an absolute right
 - E. It is the subset of other rights
2. Which one of the following alternative is **true** about protection of possession though use of force?
 - A. Circumstances do not matter to use force
 - B. The possessor should use force before any legal action
 - C. Force can be used any time until the period for legal action is barred
 - D. Any means or method can be used while using force
 - E. The possessor or the holder should use a reasonable force**
3. Among the following one is a mandatory requirement to acquire ownership via possession in good faith
 - A. There should be a contractual agreement that could be gratuitous
 - B. The purchaser should buy a corporeal movable thing from its owner**
 - C. The purchaser should purchase the thing from a person who has a valid title
 - D. The thing to be acquired could be either an ordinary or a special movable
4. From the following alternatives one is an illegitimate cause of transferring and acquiring ordinary corporeal chattels
 - A. Delivery of the thing itself by the transferor to the transferee
 - B. Delivery of the document representing the thing to be transferred**
 - C. Snatching of a good and lapse of a period of limitation for legal action
 - D. Transfer and acquisition of perfect ownership right over the thing
 - E. Transfer and acquisition of rights of usufruct over the thing to be possessed
5. Among the following alternative which one is the characteristics of servitude under Ethiopian property law
 - A. It is a right in- personam
 - B. It is personal right
 - C. It could exist in relation to one plot of land
 - D. It could exist in relation to land owned by one person
 - E. It is a right in rem**

6. One of the following alternative is true about expropriation of private properties
 - A. It is the power of the sovereign that could be delegated
 - B. It requires the consent of the owner of a private property
 - C. Properties are expropriated in the interest of the public at large**
 - D. An owner who has opposed an expropriation is not entitled for compensation
 - E. Properties might be expropriated for the interest of private investors
7. Discuss the differences and similarities between promise of sale and pre-emption under the Ethiopian property law

LL.B Exit Exam Part one NEAEA 2022/2023 (2015 E.C.)

1. How can a person's ownership of a **special movable be best proved** under the property law of Ethiopia
 - A. Though possession
 - B. Though production of a certificate of ownership**
 - C. Though production of receipts
 - D. Though witness
2. How can a person's over an **ordinary movable be best provided** under the property law of Ethiopia?
 - A. Though possession**
 - B. Though production of receipts
 - C. Though witness
 - D. Though production of a certificate of ownership
3. Which one of the following statements about usufruct is sound
 - A. In some case, usufruct may give rise to use right only**
 - B. Usufruct necessarily give rise to both the right to use and the right to own fruit
 - C. Usufruct necessarily give rise to use right
 - D. Usufruct necessarily give rise to the right to collect and own fruits
4. Which mode of obtaining of ownership is exclusively applicable to immovable things?
 - A. Transfer
 - B. Occupation
 - C. Usucaption**
 - D. Accession

NB: - አጠቃላይ ከ 2003 ጀምሮ እስከ 2015 ዓ.ም ድረስ የንብረት ህግ መውጫ ፈተናዎች ናቸው፡፡